

23BBCV02254 23BBCV02254

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Case Number: 23BBCV02254 Hearing Date: August 14, 2026 Dept: B

Hon. Victor Avila, Dept B

MOTION TO DEEM REQUESTS FOR ADMISSION

ADMITTED

Hearing Date: 07/31/26

CASE NO./NAME: 23BBCV02254 / Hall v.

FGSC, Inc., et al.

Moving Party: Defendants FGSC, Inc. and

Donnell Washington

Responding Party: Unopposed

Notice: Sufficient

Ruling: GRANT.

NOTICE

The

Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to argue as to this matter/motion. The tentative ruling will

become the ruling of the court if no argument is received. Notice may be given either by email at or by telephone at (818) 260-8422.

Parties

must appear on all other matters scheduled for this case.

BACKGROUND

This is a personal injury case arising from a motor vehicle accident that occurred on January 11, 2023. On September 28, 2023, Plaintiff Desiry Hall (Plaintiff) filed a Complaint against defendants FGSC, Inc. dba Rooter Solutions and Donnell Washington (collectively, Defendants), as well as Raul Martizez, and Rufina Huertajain.

On June 22, 2026, Defendants filed the instant motion to compel requests for admission (RFAs) admitted. No opposition has been filed as of August 7, 2026.

LEGAL

STANDARD

A party must respond to requests for admissions within 30 days after service of such requests. (Code Civ. Proc., § 2033.250, subd. (a).) "If a party to whom requests for admission are directed fails to serve a timely response...(a) [that party] waives any objection to the requests, including one based on privilege or on the protection for work product..." (Code Civ. Proc., § 2033.280, subd. (a).) "The requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7." (Code Civ. Proc., § 2033.280, subd. (b).)

DISCUSSION

Defendants contend

that Plaintiff has failed to timely respond to the RFAs on or by the statutory deadline and seek an order deeming RFAs admitted. (Mot., p. 1.) Defendants do not request sanctions.

Deem Request for Admission Admitted

Here, Defendants' counsel served Plaintiff with the RFAs by electronic service on May 4, 2026. (Nguyen Decl., ¶ 2.) Defendant declares that responses were due June 3, 2026. (Nguyen Decl., ¶ 3.) As of June 22, 2026, Defendants counsel declares that Plaintiff has not provided verified responses or requested an extension to respond. (Nguyen Decl., ¶ 4.)

Here, Plaintiff has failed to provide verified responses to Defendants' discovery request. Plaintiff is in pro per and has accepted service electronically. Since Plaintiff was properly served and Plaintiff has failed to respond to discovery requests by the statutory deadline, Defendants are entitled to an order deeming RFAs admitted.

Accordingly,
the motion is GRANTED.

CONCLUSION
AND ORDER

Defendant Brady
Trucking, Inc.'s motion to deem RFAs admitted is GRANTED.

MOVING PARTY to submit a proposed
order consistent with this ruling within 5 days of this ruling and provide
notice.

Motion for Summary Judgment

Hearing Date: 8/14/26

CASE NO.: 23BBCV02254

CASE NAME: Desiry Hall v. FGSC, Inc., et al.

Moving Party: Defendants Rufina Huerta Jain
and Raul Martinez

Responding Party: Plaintiff Desiry Hall

Notice: Sufficient

Ruling: GRANT

BACKGROUND

This is a personal injury case arising from a motor vehicle accident that occurred on January 11, 2023. On September 28, 2023, Plaintiff Desiry Hall (Plaintiff) filed a Complaint against defendants Raul Martinez, and Rufina Huertajain (collectively, Defendants), as well as FGSC, Inc. dba Rooter Solutions and Donnell Washington.

On June 23, 2026, Defendants filed the instant Motion for Summary Judgment on the causes of action for general negligence and motor vehicle negligence asserted against them.

On July 29, 2026, Plaintiff seemingly filed an opposition. On August 7, 2026, Defendants filed a reply.

REQUEST FOR JUDICIAL NOTICE

Defendants requests judicial notice of Exhibits: (A) Plaintiff Desiry Hall's Complaint filed 9/28/23; (B) Defendants Jain and Martinez's First Amended Answer filed 3/16/26; (E) Defendant Raul Martinez's Motion for Order Deeming Admitted the Truth of the Matters filed 4/21/26; (F) Defendant Rufina Huerta Jain's Motion for Order Deeming Admitted the Truth of Matters filed 4/21/26; (G) 5/29/26 Minute Order Granting Defendants' Motions Deeming Admitted the Truth of Matters; (H) Court's 6/1/26 Ruling. The request is granted. (Evid. Code, §452(d).)

Plaintiff requests judicial notice of Exhibits: (1) Defense Demurrer/Summary Motion Brief, page 2; (2) LAFD Emergency Incident Details Report for Incident #1433; (3) Defense using fictitious date and location in Defense Motions; (4) Demurrer/Summary Motion Brief, page 1; (5) LAPD Investigative Report (Case #25208630/ Incident #PD2511050002943); (6) Formal Written Correspondence from GEICO Indemnity Company dated 1/15/26; (7) GEICO Claims Department dated 1/12/23; (8) Plaintiff's Marsy's Law Status Victims Bill of Rights; (12A and 12B) AAA Fraudulent Settlement Document. In a separate filing, Plaintiff requests judicial notice

of a separate set of Exhibits: (Item 1) Minute Orders dated 5/29/26, 6/29/26, and 6/22/26; (Item 2) Minute Order dated 7/8/26 and 8/14/26; (Item 3) Discovery Submissions filed in support of their Motion for Summary Judgment; (Item 4) Defendant's dispositive admission in Exhibit 1; (Item 5) Plaintiff's sworn testimony in her live video deposition; (Item 6) AAA 24-Minute voice recording of attorney Joseph Bakshandeh.

While Exhibits 1-8, and 12A and 12B are attached to Plaintiff's opposition, they are unclear, illegible, and do not fall into categories which may be judicially noticed under Evidence Code section 452. Regarding Items 1-6, "[a] party requesting judicial notice of material under Evidence Code sections 452 or 453 must provide the court and each party with a copy of the material." (Cal. Rules of Court, rule 3.1306.) Plaintiff does not provide the court with copies of the court orders for which judicial notice is requested. Accordingly, Plaintiff's request is denied.

LEGAL STANDARD

In reviewing a motion for summary judgment or adjudication, courts must apply a three-step analysis: "(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent's claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue." (Hinesley v. Oakshade Town Center (2005) 135 Cal.App.4th 289, 294.)

"[T]he initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact." (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) When a plaintiff seeks summary judgment, the plaintiff must produce admissible evidence on each element of each cause of action on which judgment is sought. (Code Civ. Proc., § 437c(p)(1).) The plaintiff is not required to disprove any affirmative defenses to discharge this burden. (Oldcastle Precast, Inc. v. Lumbermens Mutual Casualty Co. (2009) 170 Cal.App.4th 554, 564-65.)

If the moving party fails to carry its burden, the inquiry is over, and the motion must be denied. (See Code Civ. Proc., § 437c, subd. (p)(2); see also Consumer Cause, Inc. v. SmileCare (2001)

91 Cal.App.4th 454, 468.)² Even if the moving party does carry its burden, the non-moving party will still defeat the motion by presenting evidence of a triable issue of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 849-50.) The supporting evidence can be in the form of affidavits, declarations, admissions, depositions, answers to interrogatories, and matters of which judicial notice may be taken.³ (*Aguilar*, supra, 25 Cal.4th at p. 855.)

“Once the [moving party] ... has met that burden, the burden shifts to the [non-moving party] ... to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2).) The non-moving party may not merely rely on allegations or denials of its pleadings to show that a triable issue of material fact exists, but instead, “shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action.”⁴ (*Ibid.*)⁵ “If the [non-moving party] cannot do so, summary judgment should be granted.”⁶ (*Avivi v. Centro Medico Urgente Medical Center* (2008) 159 Cal.App.4th 463, 467.)

The court must “liberally construe the evidence in support of the party opposing summary judgment and resolve all doubts concerning the evidence in favor of that party,” including “all inferences reasonably drawn therefrom.”⁷ (*Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1037; *Aguilar*, supra, 25 Cal.4th at pp. 844-45.) “On a summary judgment motion, the court must therefore consider what inferences favoring the opposing party a factfinder could reasonably draw from the evidence.⁸ While viewing the evidence in this manner, the court must bear in mind that its primary function is to identify issues rather than to determine issues. [Citation.] Only when the inferences are indisputable may the court decide the issues as a matter of law.⁹ If the evidence is in conflict, the factual issues must be resolved by trial.”¹⁰ (*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 839.)¹¹ Further, “the trial court may not weigh the evidence in the manner of a factfinder to determine whose version is more likely true. [Citation.] Nor may the trial court grant summary judgment based on the court’s evaluation of credibility. [Citation.]” (*Id.* at p. 840; see also *Weiss v. People ex rel. Department of Transportation* (2020) 9 Cal.5th 840, 864 [“Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that

party"].)

DISCUSSION

Defendants move for summary judgment against Plaintiff on the causes of action for general negligence and motor vehicle negligence on the grounds that Plaintiff has admitted that Defendants were not negligent in the subject incident, are not liable for the subject incident, that Plaintiff suffered no damages, and that Plaintiff was not injured. (Mot., p. 3.)

In order to state a claim for negligence, Plaintiff must allege the elements of (1) "the existence of a legal duty of care," (2) "breach of that duty," and (3) "proximate cause resulting in an injury." (*McIntyre v. Colonies-Pacific, LLC* (2014) 228 Cal.App.4th 664, 671.)

Movant's
Burden

Defendant argues that based on admissions to RFAs, Plaintiff cannot establish that Defendants were negligent or liable for the subject incident, or that Plaintiff was injured or incurred any damages. (Mot., p. 9.) In Requests for Admissions (RFAs) served on Plaintiff on March 13, 2026, Defendants asked Plaintiff to admit several statements including that Defendants were not liable for the subject incident and not negligent during the subject incident. (Mot., p. 3.) Defendants argue that Plaintiff never responded and the Court deemed the RFAs admitted on May 29, 2026. (Mot., p. 4.) Further, Defendants argue that pursuant to Code of Civil Procedure section 437c(b), judgment may be properly based on admissions of a party because any matters admitted in RFAs are established against the party making the admission. (Mot., p. 6.) Defendants cite *Jack v. Wood* (1968) 258 Cal.App.2d 639 which acknowledged that summary judgment may be properly based on admissions resulting from a party's failure to answer RFAs. (Mot., p. 7.)

The Court granted Defendants' motion to deem RFAs admitted on May 29, 2026. (Exh. G.) As a result, Plaintiff admitted that Defendants are not liable for the subject incident and were not negligent. (Exh. C, ¶¶ 1-2; Exh. D, ¶¶ 1-2.) Plaintiff also admitted that she

was not injured and suffered no damages related to the subject incident. (Exh. C, ¶¶ 7-8; Exh. D, ¶¶ 7-8.) Code of Civil Procedure section 437c(b) provides that a motion for summary judgment “shall be supported by affidavits, declarations, admissions, answers to interrogatories, depositions, and matters of which judicial notice shall or may be taken.” (Code Civ. Proc., § 437c(b).) Defendants cite *Jack v. Wood*, in which the Court stated that a motion for summary judgment may be based on admissions made due to failure to answer RFAs, but reversed summary judgment due to insufficient supporting declaration. (*Jack v. Wood*, *supra*, 258 Cal.App.2d at 644.) However, the Court clarified that “the defect in the supporting declaration [did] not render the trial court's action improper in view of the implicit admission [caused] by ... plaintiff's failure to respond to the requests for admissions.” (*Id.* at 648.)

Here, Defendants submit a supporting declaration which states each admission of fact the motion is based on with particularity and support with several judicially noticed documents. In light of these admissions, Defendants have shown that Plaintiff cannot establish negligence, general or motor vehicle, against Defendants. The burden now shifts to Plaintiff to establish triable issue of material facts.

Opposing Party's Burden

In Plaintiff's opposition, she does not directly address arguments made by Defendants but rather makes several other allegations of fraud and statutory violations against Defendants and her own former counsel. (*Ibid.*) In her supplemental declaration, filed prior to the written opposition, Plaintiff argues that the interrogatory responses relied upon in Defendants' motion were signed fraudulently by her former counsel. (Hall Decl., p. 2.)

Here, Plaintiff's former counsel was relieved on November 3, 2025, and Plaintiff has been representing herself in pro per since then. (See 11/3/25 Order.) Defendants served the RFAs on Plaintiff on March 13, 2026, which means Plaintiff, herself, failed to respond to the discovery request. (Bakshandeh Decl., ¶¶ 2-3.) Moreover, Defendants' motion is based on RFAs deemed admitted due to Plaintiff's failure to respond. If there is no response, there is no fraudulent signature. Thus, Plaintiff makes no arguments which establish a triable issue of material facts.

Additionally, Plaintiff's opposition is procedurally defective as it lacks a separate statement that responds to each of the material facts contended by the moving party to be undisputed, indicating if the opposing party agrees or disagrees that those facts are undisputed, as required by section 437c(b)(3). (Code Civ. Proc., § 437c(b)(3).) Failure to comply with this requirement of a separate statement may constitute sufficient ground, in the court's discretion, for granting the motion. (Ibid.)

Accordingly, the motion for summary judgment is GRANTED.

CONCLUSION

AND ORDER

Defendants Rufina Huerta Jain and Raul Martinez Motion for Summary Judgment is GRANTED.

MOVING PARTY is to give notice and provide a proposed order consistent with this ruling within 5 days from this date.